

Recruitment: the CNIL issues a formal notice to a company to minimize the collection of personal data from candidates

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The CNIL was notified of a complaint against a company that collected numerous personal data from job candidates (place of birth, nationality, family situation, etc.). This collection is contrary to the principle of minimization, which requires the data controller to process information limited to what is necessary to achieve the intended objectives.

****The requirements of the principle of minimization during employee recruitment****

In the context of recruitment, the principle of minimization should lead the recruiter to collect only the data that has "a direct and necessary link with the proposed job or with the assessment of professional skills," according to the labor code.

Furthermore, the recruiter must not engage in any unlawful discrimination against candidates. For example, a person cannot be excluded from a recruitment process due to their age or family situation.

The information requested must allow for the identification of the candidate most suited for the position to be filled, to verify their skills (knowledge, know-how, and interpersonal skills) and the qualifications required for the position in question (e.g.: diplomas, titles, and experiences). They must have the sole objective of validating or not a candidacy.

It is only at the hiring stage, that is, once a candidacy has been definitively selected, that the employer may collect additional data (full civil status, including date and place of birth, postal address, social security number, copies of supporting documents, etc.). Indeed, only the data of selected candidates are necessary for the completion of the employer's mandatory formalities (prior declaration of hiring, nominative social declaration, etc.).

To assist employers, the CNIL published a guide dedicated to recruitment in January 2023.

****A formal notice to comply with the principle of minimization of data collection****

Following a complaint, the CNIL services engaged with a company regarding the personal data of job candidates collected at the application stage.

The company required candidates to provide their place of birth, nationality, family situation (if they were in a relationship, the name and surname of their partner, their date and place of birth, their profession, the number of children and their ages) as well as all salaries received in previous companies (total gross annual salary including variable components).

The president of the CNIL reminded the company in this context that, in the framework of recruitment, the collection from a job candidate is not justified:

- information relating to family members;
- the candidate's place of birth;
- information relating to a candidate's nationality to assess their ability to occupy the proposed job. An aggregated level of detail (for example, in the form of three options: "French," "European Union national," or "non-EU") should suffice, particularly for so-called "sovereignty" jobs.

In the case of candidates of foreign nationality, information regarding the possession of a permit allowing them to work in France is among the data that may be collected in the context of recruitment;

- the amount of salaries received in the past by a candidate, at the initiative of a recruiter.

This information is not useful for assessing the ability to occupy the proposed job or the candidate's skills, and is therefore not compatible with the provisions of the labor code. However, the candidate may, on their own initiative, provide any useful element to justify their salary expectations.

The company having complied with this formal notice, the president of the CNIL closed the formal notice procedure against it.

****Reference Text****

To learn more

- The CNIL's enforcement chain
- How does a CNIL inspection take place?
- The formal notice procedure
- The recruitment guide
- All CNIL content on recruitment

****Reference Text****

Reference texts

- Article 5.1.c) of the GDPR
- Article L. 1221-6 of the Labor Code
- Article L. 1132-1 of the Labor Code

#Recruitment #Candidate #Work #Formal Notice #Data Minimization